

24SMCV05026 24SMCV05026

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Department: 207
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Case Number: 24SMCV05026 Hearing Date: June 23, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

June

23, 2026

CASE NUMBER

24SMCV05026

MOTION

Motion

for Summary Judgment/Summary Adjudication

MOVING PARTY

Defendant Fullmer Construction

OPPOSING PARTY

none

MOVING PAPERS:

Notice

of Motion and Motion for Summary Judgment/Summary Adjudication; Memorandum

of Points and Authorities

Declaration

of Gered R. Yetter

Request

for Judicial Notice

Evidence

Package of Exhibits

Declaration

of Jane E. Carey

Separate

Statement of Undisputed Material Facts

OPPOSITION PAPERS:

Plaintiff's Notice of

Non-Opposition

BACKGROUND

This case arises from allegations that on December 26, 2022, Plaintiff was injured when a gate fell on him, causing severe and permanent injuries.

On October 11, 2024, Plaintiff Ramon Rodriguez ("Plaintiff") filed suit against Defendants Airef Rialto Commerce Center LP ("Airef"); Ares Operations LLC ("Ares"); Fullmer Construction ("Fullmer"); and T-9 Enterprises, Inc. ("T9") alleging two causes of action for (1) negligence and (2) premises liability.

T-9 subsequently cross-complained against Roes 1-50 for indemnity, apportionment, contribution, and declaratory relief.

Fullmer now moves for summary judgment, or in alternative, summary adjudication of the following issues:

1. First Cause of Action [Negligence] - The

undisputed material facts establish that FULLMER did not owe a duty to Plaintiff and, therefore, was not negligent.

2. Second Cause of Action [Premises Liability] -

The undisputed material facts establish that FULLMER did not own, lease or have any control over the property where the subject incident occurred, and therefore cannot be held liable for any condition on the property.

Plaintiff has filed a notice of

non-opposition to Fullmer's motion.

REQUEST FOR JUDICIAL NOTICE

Fullmer requests the Court to take judicial notice of the Demo Permit from the City of Rialto for the demolition work to be performed at the property, which was issued on January 10, 2023.

Courts may take judicial notice of "official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." (Evid. Code, § 452, subd. (c); see also *Honig v. San Francisco Planning Dept.* (2005) 127 Cal.App.4th 520, 524, fn. 3 [taking judicial notice of the building permit for the property].)

However, "While we may take judicial notice of ... official acts of state agencies, the truth of matters asserted in such documents is not subject to judicial notice." (*Lent v. California Coastal Com.* (2021) 62 Cal.App.5th 812, 854.)

Here, Fullmer requests the Court to take judicial notice of the Demo Permit to prove that it did not begin work on the subject property until January 10, 2023, after the December 26, 2022 date on which Plaintiff was injured by the falling gate.

As such, the Court does not take judicial notice of the truth of the

contents of the Demo Permit, but nonetheless considers the Demo Permit (and its contents) as evidence.

LEGAL STANDARDS – MOTION FOR SUMMARY

JUDGMENT/ADJUDICATION

“[T]he party moving for

summary judgment bears the burden of persuasion that there is no triable issue

of material fact and that he is entitled to judgment as a matter of law[.]

There is a triable issue of material fact if, and only if, the evidence would

allow a reasonable trier of fact to find the underlying fact in favor of the

party opposing the motion in accordance with the applicable standard of proof.”

¿(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850

(hereafter Aguilar).) ¿“[T]he party moving for summary judgment bears an

initial burden of production to make a prima facie showing of the nonexistence

of any triable issue of material fact; if he carries his burden of production,

he causes a shift, and the opposing party is then subjected to a burden of

production of his own to make a prima facie showing of the existence of a

triable issue of material fact.” ¿(Ibid.; Smith v. Wells Fargo Bank,

N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar

apply to summary adjudication motions].)

Further, “the trial court

may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility." (Aguilar, supra, 25 Cal.4th. at p. 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

A party may move for summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., § 437c, subd. (n); Union Bank v. Superior

Court (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the

burden shifts to the plaintiff to show that a triable issue of material fact

exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with Aguilar,

“[o]n a motion for summary adjudication, the trial court has no discretion to

exercise. If a triable issue of material fact exists as to the challenged

causes of action, the motion must be denied. If there is no triable issue of

fact, the motion must be granted.” (Fisherman's Wharf Bay Cruise Corp.

v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

The elements of a cause of

action for premises liability are the same as those for negligence: duty,

breach, causation, and damages. (McIntyre

v. The Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.) Therefore, to prevail on a claim for premises

liability, Plaintiff must prove: (1) defendant owned or controlled the subject

property; (2) defendant was negligent in the use or maintenance of the

property; (3) plaintiff was harmed; and (4) defendant's negligence was a

substantial factor in causing plaintiff's harm.

(See Rowland v. Christian (1968) 69 Cal.2d 108.)

"It is generally true that a person is liable for injuries to another only as a result of his or her own conduct. Liability is based not on responsibility for the conduct of others, but on the failure of the landowner or occupier to act reasonably under the circumstances when he or she has reason to anticipate the probability of injury and has an opportunity to prevent the injury or warn of the peril. Thus, liability is based on his or her own failure to act reasonably." (Cody F. v. Falletti (2001) 92 Cal.App.4th 1232, 1242 [cleaned up]; Delgado v. American Multi-Cinema, Inc. (1999) 72 Cal.App.4th 1403, 1406, fn. 1 ["premises liability alleges a defendant property owner allowed a dangerous condition on its property or failed to take reasonable steps to secure its property against criminal acts by third parties"].)

The crux of Fullmer's argument is that it did not own, possess, or control the property in question on or before the date Plaintiff was injured, and therefore owed no duty of care with respect to the gate in question.

In support, Fullmer advances the Declaration of Gered R. Yetter, CFO for Fullmer Construction, which provides as follows:

3.

Fullmer Construction was hired by Defendant AIREF Rialto Commerce Center, LP, through ARES Operations LLC in 2022 to be the general contractor for a construction project to take place at property located at 1230 W Durst Dr, Rialto, CA 92376 ("the property"). Based on information and belief, the property is owned by Defendant AIREF Rialto Commerce Center, LP, part of a real estate investment group.

4. As

part of the construction project Fullmer Construction was hired by ARES Operations LLC to perform at the property, Fullmer Construction hired T-9 Enterprises, Inc. to perform demolition and grading work for the project starting in January 2023.

5. Prior

to any work commencing at the property, representatives from Fullmer Construction conducted a walk through of the property one time on November 21, 2022 with representatives from T-9 Enterprises, Inc. This was the first and only time that representatives from Fullmer Construction went to the property until the demolition work commenced in January 2023

6. The

date of commencement of Fullmer Construction's work to be performed at the property pursuant to its contract with AIREF Rialto Commerce Center, LP was

January -7, 2023. Attached hereto as Exhibit B is a true and correct copy of the Letter of Commencement setting forth the parties agreement as to the commencement and completion dates of Fullmer Construction's work at the property.

7.

Fullmer Construction's and T-9 Enterprises, Inc.'s work at the property required a Demo Permit from the City of Rialto. Attached as Exhibit C is a true and correct copy of the Demo Permit issued for the demolition work to be performed at the property which was issued 1/10/2023.

8. No one

from Fullmer Construction was at the property on 12/26/2022, the day of the incident alleged in the Complaint, when Plaintiff alleges, he suffered injuries when the front entrance gate fell on him.

9. Fullmer

Construction did not install, maintain, or repair the gate at the front entrance to the property.

10.

Fullmer Construction never owned, leased, had possession, control over, or any responsibility for the property until it commenced its construction work for the project in January 2023.

11. At

the time Fullmer Construction representatives performed their walk through of the property on November 21, 2022, no one from Fullmer Construction was ever notified of any issues regarding the front entrance gate or requested by anyone to take any action with respect to the gate.

12.

Fullmer Construction had no knowledge that Plaintiff would be at the property on the day of the incident

(Yetter Decl. ¶¶ 3-12.)

Thus, Fullmer has met its initial burdens of production and persuasion to demonstrate that it did not own, possess, or control the premises on or before the date Plaintiff was injured, and therefore owed no duty of care to Plaintiff, and Plaintiff has not opposed the motion to create any triable issues of material fact.

CONCLUSION AND ORDER

Having met its burdens of production and persuasion, the Court grants

Fullmer's unopposed motion for summary judgment in its entirety.

Further, the Court will enter the proposed Order lodged on March 23,

2026 in conformance with the ruling, and orders Fullmer to lodge a proposed

Judgment in conformance with the ruling on or before July 7, 2026.

Fullmer shall provide notice of the Court's Order and file the notice

with a proof of service regarding the same.

DATED: June 23, 2026 ____/s/____

Michael

E. Whitaker

Judge

of the Superior Court